

26STCP01303 26STCP01303

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-09-17

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Case Number: 26STCP01303 Hearing Date: September 17, 2026 Dept: 25

HEARING DATE: Thurs, September 17, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Ricberay,

Inc. v. Apolinar PET. FILED: 03-30-26

CASE NUMBER: 26STCP01303

NOTICE: OK

PROCEEDINGS: MOTION

FOR AWARD OF ATTORNEY'S FEES AND COSTS

MOVING PARTY: Petitioner

Ricberay, Inc.

RESP. PARTY: None

MOTION FOR ATTORNEY FEES AND COSTS

(Civ. Code §§ 798.85, 1717)

TENTATIVE RULING:

The Court GRANTS Ricberay, Inc.'s motion for attorney fees and costs in the reduced total amount

of \$9,777.79, comprising \$9,209.50 in attorney fees and \$568.29 in costs.

Ricberay is to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§ 1013, 1013a)
OK

☒ 16/21
Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None
filed as of September 11, 2026 ☐ Late ☒
None

REPLY: None
filed as of September 11, 2026 ☐
Late ☒ None

ANALYSIS:

Ricberay, Inc. petitioned the Court for a permanent injunction against Martin Apolinar pursuant to Civil Code section 798.88. The Court granted the petition and signed the submitted order on May 21, 2026. Ricberay now moves for attorney fees and costs pursuant to Civil Code section 798.85. Apolinar has not opposed this motion.

Attorney fees are allowable as costs when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10).) Civil Code section 1717 authorizes fees for a prevailing party when a party sued on a contract that allows for them. The rental agreement between Ricberay and Apolinar provides that "the prevailing party shall be entitled to reasonable attorney[] fees and costs." Additionally, Civil Code section 798.85 allows for recovery of reasonable attorney fees and costs by the prevailing party in any action pursuant to Civil Code section 798.88. Given that Ricberay is the prevailing party in this action, Ricberay is entitled to recover reasonable

attorney fees and costs on contractual and statutory grounds.

The Court's objective is to award those fees at the fair-market value for the attorneys' work. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) That can be done by multiplying the number of hours the attorneys reasonably expended by a reasonable hourly rate. (*Id.* at p. 1132, 1134.)

Ricberay

seeks attorney fees based on attorney Gregory B. Beam's hourly rate of \$350.00 up until January 1, 2026, increased to \$375.00 after that date; attorney Norman Paul Breen's hourly rate of \$350.00, and paralegal Sandra Beck's hourly rate of \$140.00. These hourly rates are reasonable.

Beam's declaration states the services rendered by his firm include issuing two separate notices, preparing and filing the petition, communicating with witnesses, preparing and filing declarations, attending the injunction hearing, and obtaining the injunction order.

The number of hours expended before this motion include Beam's work of six hours, Breen's work of 13.3 hours, and Beck's work of 11.8 hours, which amounts to \$8,459.50. This amount is reasonable.

Ricberay

also seeks attorney fees for bringing this motion, in 1.5 hours of Breen's work drafting it, one hour of Beam's work reviewing and revising, two hours for Beam's appearance at this hearing, and if an opposition is filed, two hours for Beam's review and preparation of a reply.

As there was no opposition filed, two hours of Beam's total work are deducted. Likewise, the Court does not anticipate this to be a long hearing. It will allow \$562.50 for time preparing the motion and half an hour of Beam's time for the hearing, for a total of \$750.00.

That

makes a total of \$9,209.50 in attorney fees.

The \$568.29

in costs Ricberay requests are set forth in the memorandum of costs and include filing and motion fees, service of process, and fees for electronic filing or service. These requests are proper and reasonable.

Accordingly,

the Court GRANTS Ricberay's motion for attorney fees and costs in the reduced total amount of \$9,777.79, comprising \$9,209.50 in attorney fees and \$568.29 in costs.

Ricberay

is to give notice.